

TENTATIVE RULINGS for LAW and MOTION
May 14, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: Basarich v. Kim
Case No. CV2021-1195

Hearing Date: May 14, 2026 **Department Eleven** **9:00 a.m.**

The Court does not consider plaintiff Rhonda Basarich's evidentiary objections made in her responsive separate statement because these objections were not "served and filed separately from the other papers...in opposition to the motion." (Cal. Rules of Court, rule 3.1354(b).)

Defendants Department of General Services ("DGS"), Andrew Sturmfels, and Daniel Kim's objections to evidence nos. 19 and 20 are **OVERRULED**. The Court declines to rule on the remaining evidentiary objections because the evidence objected to is not relevant to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)d

Defendants' motion for summary adjudication as to issue nos. 1, 2, and 3 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendants argue there is no evidence that DGS subjected plaintiff to an adverse employment action *because of* her national origin, gender, and/or age. (Notice of motion, pp. 2-3.) However, as to these issues, defendants have failed to show that plaintiff cannot establish one or more elements of the first cause of action. (Code Civ. Proc., § 437c, subd. (p)(2); *Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1004 [noting that "direct evidence of intentional discrimination is rare, and that such claims must usually be proved circumstantially"], citation omitted.)

Defendants' motion for summary adjudication as to issue no. 4 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) "If...the motion for summary judgment relies in whole or in part on a showing of nondiscriminatory reasons for the discharge, the employer satisfies its burden as moving party if it presents evidence of such nondiscriminatory reasons that would permit a trier of fact to find, more likely than not, that they were the basis for the termination." (*Scotch, supra*, 173 Cal.App.4th at p. 1005.) "To defeat the motion, the employee then must adduce or point to evidence raising a triable issue, that would permit a trier of fact to find by a preponderance that intentional discrimination occurred." (*Ibid.*) Defendants have presented evidence that there were legitimate, non-discriminatory reasons for removing and dismissing plaintiff. (UMF 4.13-4.18, 4.20, 4.22, 4.24, 4.31-4.32, 4.34, 4.38, 4.40-4.47; cf. *Silva v. Lucky Stores, Inc.* (1998) 65 Cal.App.4th 256, 264.) However, plaintiff provides evidence raising a triable issue of material fact. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252; see also Cal. Rules of Court, rule 3.1350(d)(2) ["The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion."]; UMF 4.47.)

Defendants' motion for summary adjudication as to issue no. 5 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendants have failed to establish they can obtain summary adjudication as to the first cause of action by asserting that plaintiff cannot show evidence of pretext. (*Ibid.*; see *Scotch, supra*, 173 Cal.App.4th at pp. 1004-1005.)

Defendants' motion for summary adjudication as to issue nos. 6 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendants have shown that plaintiff cannot establish she engaged in a protected activity. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042 & 1046-1047; UMF 6.1-6.6.) However, plaintiff provides evidence raising a triable issue of material fact. (See

Yanowitz, supra, 36 Cal.4th at p. 1047; UMF 6.4.) While defendants argue that plaintiff's declaration contradicts her sworn deposition testimony, the Court finds that the declaration is not directly in conflict with her deposition testimony. (*Wilkins v. National Broadcasting Co.* (1999) 71 Cal.App.4th 1066, 1082; UMF 6.4.)

Defendants' motion for summary adjudication as to issue nos. 7, 10, and 13 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendants have failed to establish that plaintiff cannot show the protected disclosure element for this cause of action. (CACI 4601; Gov. Code, §§ 8547.2, 8547.8, subd. (e); *Patten v. Grant Joint Union High School Dist.* (2005) 134 Cal.App.4th 1378, 1384-1385; UMF 7.3-7.5.)

Defendants' motion for summary adjudication as to issue nos. 8, 11, and 14 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) In their notice of motion, defendants assert that plaintiff cannot establish a causal link between her protected disclosures and the adverse employment action. (Notice of motion, pp. 3-4.) However, defendants fail to make any argument as to these issues in their memorandum of points and authorities. (See Code Civ. Proc., § 437c, subd. (p)(2).)

Defendants' motion for summary adjudication as to issue nos. 9, 12, and 15 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendants have shown that they had a legitimate, non-retaliatory reason for the adverse employment action, but plaintiff provides evidence raising a triable issue of material fact. (Gov. Code, § 8547.8, subd. (e); *Nazir, supra*, 178 Cal.App.4th at p. 252; see also Cal. Rules of Court, rule 3.1350(d)(2); UMF 9.48, 12.48, & 12.48.)

Defendants' motion for summary judgment is **DENIED**.

Parties are **DIRECTED TO APPEAR** for oral argument.

TENTATIVE RULING

Case: **De La Cruz v. Del Monte Capitol Meat Company, LLC**
Case No. CV2025-1527

Hearing Date: **May 14, 2026** **Department Eleven** **9:00 a.m.**

Del Monte Capitol Meat Company LLC's motion to stay all proceedings pending resolution of appeal is **GRANTED**. (Code Civ. Proc., § 1294, subd. (a).) The Court finds that interests of justice and judicial efficiency are best served by staying all proceedings pending appeal. (See *OTO, LLC v. Kho* (2019) 8 Cal.5th 111, 141; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489; see also *Alpha Media Resort Inv. Cases* (2019) 39 Cal.App.5th 1121, 1134 n.10.)

The case management conference, set for June 30, 2026, is **VACATED**. The Court sets a status conference for **November 16, 2026**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: FTNT Holding, LLC v. Khan
Case No. CV2025-1747

Hearing Date: May 14, 2026 **Department Eleven** **9:00 a.m.**

Motion for leave:

Cross-defendants Qassam Tariq, Naila Tariq, Azam Mirza, Faiza Tariq, and FTNT Holding, LLC’S request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are irrelevant to the Court’s determination of the motion. (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 [“Any matter to be judicially noticed must be relevant to a material issue”].)

Defendant/cross-complainant Zahra Khan’s motion for leave to file proposed second amended cross-complaint is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 473, 576; Cal. Rules of Court, rule 3.1324.) First, cross-complainant has not stated what allegations are proposed to be added and/or deleted and where, by paragraph and line number. (Cal. Rules of Court, rule 3.1324(a)(2)-(3).) Second, cross-complainant’s supporting declaration does not specify: “(3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” (Cal. Rules of Court, rule 3.1324(b); see Khan decl.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to strike:

Cross-defendants Qassam Tariq, Naila Tariq, Azam Mirza, Faiza Tariq, and FTNT Holding, LLC’s unopposed motion to strike first amended cross-complaint or portions thereof is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 435 et seq.) On March 20, 2026, cross-defendants filed a proof of service, indicating that cross-complainant was timely served by electronic service. (Code Civ. Proc., §§ 1005, subd. (b), 1010.6, subd. (a)(3)(B).) However, cross-complainant is not represented by an attorney, and the Court’s file does not indicate that she provided express consent to receive electronic service. (Code Civ. Proc., § 1010.6, subd. (c); Cal. Rules of Court, rule 2.251(b) & (c); YCR 7.2.) Therefore, unless cross-defendants can establish that cross-complainant provided express consent to electronic service, cross-complainant must be served conventionally. (Code Civ. Proc., § 1010.6, subd. (c)(3)(ii); Cal. Rules of Court, rule 2.251(b).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Seegmiller v. Stohrer**
 Case No. CV2024-2386

Hearing Date: **May 14, 2026** **Department Fourteen** **9:00 a.m.**

Dr. Stohrer's motion to compel:

Defendant Anne Stohrer, M.D.'s unopposed motion to compel plaintiffs' responses to discovery is **GRANTED**. (Code Civ. Proc., §§ 2030.290, 2031.300.) Plaintiffs William Crew Seegmiller, Allison M. Seegmiller, and William A. Seegmiller shall serve verified responses, without objections, together with any responsive documents by no later than **May 29, 2026**.

Defendant's request for monetary sanctions is **GRANTED**, in the amount of **\$1,200.00**, against plaintiffs and their counsel. (Code Civ. Proc., §§ 2023.010, 2023.030; Wolinsky decl., ¶ 26.) Plaintiffs and/or their counsel shall pay the sanction by **June 15, 2026**.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rule of Court 3.1312 or further notice is required.

Dr. Chen's motion to compel:

Defendant Gordon Chen, M.D.'s unopposed motion to compel plaintiffs' responses to discovery is **GRANTED**. (Code Civ. Proc., §§ 2030.290, 2031.300.) Plaintiffs William Crew Seegmiller, Allison M. Seegmiller, and William A. Seegmiller shall serve verified responses, without objections, together with any responsive documents by no later than **May 29, 2026**.

Defendant's request for monetary sanctions is **GRANTED**, in the amount of **\$1,200.00**, against plaintiffs and their counsel. (Code Civ. Proc., §§ 2023.010, 2023.030; Wolinsky decl., ¶ 26.) Plaintiffs and/or their counsel shall pay the sanction by **June 15, 2026**.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rule of Court 3.1312 or further notice is required.

TENTATIVE RULING

Case: **UC Davis Men's Rowing Club v. Johnson**
 Case No. CV2025-3100

Hearing Date: **May 14, 2026** **Department Eleven** **9:00 a.m.**

The hearing on the merits regarding petitioner UC Davis Men's Rowing Club's petition for writ of mandate is **DROPPED FROM CALENDAR**. Pursuant to the stipulation and order to continue merits hearing date and reset briefing schedule (filed March 25, 2026), petitioner's opening brief was due April 22, 2026, but no opening brief was filed.